4171

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of THIRTY-ONE THOUSAND DOLLARS ($31,000.00), certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of CHARLES O. H. FRITZSCHE, residing in Germany, whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is situate in the Borough of Totowa, County of Passaic and State of New Jersey, and described as follows, to-wit:

> All that tract or parcel of land containing fourteen and forty-two one-hundredths (14.42) acres, more or less, being the same tract or parcel of land containing fifteen and forty-two one-hundredths (15.42) acres, more or less, conveyed by deed from Johanna J. H. Fritzsche to Charles O. H. Fritzsche, dated June 10, 1895 and recorded June 11, 1895 in the Clerk's office of the County of Passaic, State of New Jersey, in Book Z-11 of deeds, page 376, excepting therefrom certain tracts or parcels of land conveyed for school and road purposes.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the sale of said real estate has been received by the Alien Property Custodian;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience;

(c) The property is not producing income sufficient to pay taxes and assessments levied against it.

CALVIN COOLIDGE

THE WHITE HOUSE,
March 13, 1925.

[No. 4171]

GOVERNMENT PRINTING OFFICE